

LAW OF TORTS PPL 301

TOPICAL COMPENDIUM 3

TRESPASS TO LAND

1. Trespass to Land arises because People have a proprietary interest in their land. In Nigeria, this interest is constitutionally guaranteed. The right to own property in Nigeria is recognized in section 43 of the Constitution of Nigeria 1999. This section provides that: "Subject to the provisions of this Constitution, every citizen of Nigeria shall have the right to acquire and own immovable property anywhere in Nigeria." In the Case of **CHIEF JOSEPH ABRAHAM V. ISHAU AMUSA OLORUNFUMMI** Tobi J.C.A. defined ownership of Property as Follows: "The Owner of a Property can use it for any purpose, material, immaterial, substantial, non-substantial, valuable and invaluable, beneficial or even for a purpose which is detrimental to his personal or proprietary interest. In so far as the property is his and inheres in him nobody can say anything. He is the alpha and Omega of the property. The property begins with him and ends with him." Given this constitutionally and judicially recognized right to ownership, it is therefore not surprising that there is a tort of Trespass to Land.
2. The tort of trespass to land exist to prevent the unjustified interference with the land in the possession of another. In *Dantosho V. Muhammed* the Supreme Court defined trespass to land as the unwarranted or unjustifiable entry or intrusion by one person upon the land in the possession of another. Students should compare this definition with the definition of the Court in:
 - a. *Adetona V. Zenith International Bank Plc* (2011) 18 NWLR (Part 1279) 627.
 - b. *Tanko V. Echendu* (2010) 18 NWLR (PT 1224) 253.
3. In *Eze V. Obiefuna*, the Supreme Court said that Trespass to land consist in the slightest disturbance of the possession of land by a person who cannot show a better right of possession.
4. In the past, the tort of trespass to land was governed by the maxim *cuius est solum, eius, est usque ad coelom et ad inferos*. Whoever owns the land owns it all the way to the heavens and to hell. Under this view, an action for trespass could lie against any interference under the land or in the subsoil of

the plaintiff to any depth and above the land of the plaintiff to any height whatsoever. Today this view has been moderated to suit the exigencies of modernity.

5. Today for the purpose of Trespass to Land, land includes the Surface soil, any building or things attached, to or growing on the land, water on it, the air space above it to a reasonable extent in the sky and under the ground.
6. In Nigeria, land does not include mineral resources under the ground. This is because section 44(3) of the Constitution provides that:

Notwithstanding the foregoing provisions of this section, the entire property in and control of all minerals, mineral oils and natural gas in under or upon any land in Nigeria or in, under or upon the territorial waters and the Exclusive Economic Zone of Nigeria shall vest in the Government of the Federation and shall be managed in such manner as may be prescribed by the National Assembly. *✓

Similarly, the Interpretation Act Section 18 of the Interpretation Act provides that: "land" includes 'any building and any other thing attached to the earth or permanently fastened to anything so attached, but does not include minerals.'

7. The definition of land does also extend to an infinite height in the sky. Section 9 of the Civil Aviation Act provides that an action would not lie in Trespass simply by reason of the ordinary incident of the flight of an airline over any property at a height above the ground which is reasonable having regard to wind, weather and all the circumstances of the case. In *Bernstein V. Sky Views Ltd* Griffith J noted that: there is no support in authority for the view that a land owner's right in the air space above his property extends to an unlimited height in the sky.

8. CHARACTERISTICS OF TRESPASS TO LAND:

- a. It may be committed intentionally or negligently
- b. It may be caused by entering the land or by remaining on the land or by causing any physical matter to come into contact with the land in the possession of another.
- c. The defendant's state of mind in entering the land is irrelevant to the issue of liability for trespass. He thus cannot plead that he entered the land by

mistake or that he entered the land believing that it belongs to him was still liable because he intended to enter the land. In *Basely V. Clarkson*, the defendant was mowing his lawn when he innocently and unintentionally entered his adjoining neighbour's land by mistake and cut the grass thinking he was still on his land. At the suit of the plaintiff for trespass, the defendant pleaded accident and mistake. The court held that accident and mistake were not defences to trespass and the defendant had committed trespass to land.

- d. For liability to lie in Trespass to land, entry must be voluntary. No action can lie for involuntary entries. Thus if Bola Chicago drags Bonnyface into Chief Koko's farm, Bonnyface cannot be liable for trespass to land. In *SMITH V. STONE*, the defendant was carried by a third party and thrown into the plaintiff's land. The plaintiff sued for trespass, the court held that the trespass was not committed by the defendant but by the person who threw him into the plaintiff's land.
- e. The tort of trespass is expressed in the Latin maxim *Trespass quare clausum fregit*. Meaning, the defendant broke the close of the plaintiff.
- f. The slightest crossing of a boundary into the plaintiff's land is trespass. In *Gregory V. Piper*, in the cause of construction the defendant deposited a small amount of debris on the land of the plaintiff. The defendant argued in the court that the quantity of the debris was insignificant. The court held that even if it was just one stone, it was trespass.
- g. An action in Trespass would lie not only for land but also for things attached or affixed to land.
- h. The act must be direct and not indirect or consequential. If it was indirect or consequential it was nuisance. In *SOUTHPORT CORP V. ESSO PETROLEUM* the defendant petroleum company's tanker in an effort to save his ship from sinking discharged oil into the sea. The oil was carried by wind and tide to the shore where it fouled the Plaintiff city foreshore. The plaintiff filed an action for trespass. The Court held that the action ought to lie in Nuisance and not trespass. In *SMITH V. GIDDY* the court held that if I plant a tree on your land it is trespass. But if the root of the tree on my land grows into your land it is nuisance. Similarly, in *Lemon v.*

Webb, it was held that branches of a tree growing from the defendants land to the plaintiffs land constitute nuisance and not trespass to land.

- i. Trespass to land exist to prevent interference with possession, thus the right to trespass to land protects the person in possession of the land and not the owner of the land. Thus a lawful tenant has a strong case in trespass to land.
- j. The torts of trespass protects de facto possession therefore an unlawful tenant in exclusive possession has a right to sue everyone trespass for trespass except the person with a better title. In *Amakor v. Obiefuna*, the Supreme Court stated that: "It is trite law that trespass to land is actionable at the suit of the person in possession of the land. The person can sue for trespass even though he is not the owner or a privy of the owner. This is because exclusive possession of the land is gives the person in such possession the right to retain it and to undisturbed enjoyment of it against all wrong doers except a person who can establish a better title. Therefore anyone (other than the true owner) who disturbs the possession of the land

can be sued in trespass and in such an action, it is no defence to contend that the title of the land is in another person. To resist the plaintiff's claim, a defendant must show either that he is the one in actual possession or that he has a right to possession."

- k. In *EKPAN V. UYO OBASEKI JSC* defined possession as: "occupation or physical control of the land either personally or through an agent or servant."
- l. The tort of trespass protects de facto possession, therefore an original trespasser can sue a subsequent trespasser for trespass. In *Idehen v. Olaye* the court held that a claim for damage for trespass lies at the instance of the party in possession or entitled to possession.
- m. The tort of trespass protects defacto possession. However, a man may possess through his agents or his servants. A man may also possess constructively. Thus Bola Chicago in Lagos can be the Possessor of the house in Enugu if the house is locked and he has the keys.
- n. A landlord who has leased his land to tenants cannot sue for trespass, unless he proves that the trespass is of such a nature as to adversely

affect his reversionary interest. Thus Bola Chicago who rented a three bedroom flat to Mr Bonnyface can only sue for trespass if Chief Koko is trying to build a fence that cuts off 20% of Bola Chicago's land and Bonnyface is unwilling or unable to do something about it.

- o. In *Allen V. Liverpool Overseas*, it was stated that a lodger or licensee cannot sue for trespass. Thus Bola Chicago who is a guest at Sunshine Hotels cannot sue for trespass against sunshine hotels.
- p. A plea of *Jus Ter tii* is no defence to an action for trespass to land. Jus Ter Tii is an argument that a third party is the real owner and not the plaintiff in an action for trespass. For instance if Bola Chicago sues Bonnyface for trespass to land and Bonnyface argues that the land actually belongs to Chief Kokori, it would not exempt him from liability. The exception to this rule is where the plaintiff pleading *Jus Ter Tii* also proves that he was expressly directed by the owner to take possession. Thus in the scenario above, it would be a defence for Bonnyface to argue that he was authorized by Chief Kokori to enter the land.
- q. It is actionable per se.

9. CHARACTERISTICS OF POSSESSION IN THE TORT OF TRESPASS TO LAND

- a. For a plaintiff to succeed in an action for trespass to land, he must prove that he has physical control of the land (Corpus Possessions) with an ability to exclude all others from the land (animus dominion or animus posedenti).
- b. He does not have to prove that he is always physically present on the land. Any act on his part that shows that he has exclusive control of the land will suffice.
- c. A plaintiff who is not in constant physical possession can prove that he is physically present on the land by:
 - Living on the land.
 - Erecting signboard on the land.
 - Demarcating the land. The court held in *Wuta – Ofei V. Danguah* that division of a land in its four corners was sufficient physical possession.

- By erecting a pillar on the land. This was the decision in *Okechukwu v. Okafor*
- By cultivating on the land
- Students should examine the decision of the Court in *Thompson V. Arowolo*, (2003) 7 NWLR (PART 818) 163.

10. Students should familiarise themselves with the following cases:

- *IHENACHO V. UZOCHUKWU* (1997) 2 NWLR (PT 487) 257;
- *CALABAR EAST CORP SOCIETY V. IKOT* (1993) 8 NWLR (PT311) 324.

11. INGREDIENTS OR ELEMENTS OF TRESPASS TO LAND

The ingredients or elements of trespass to land are what a plaintiff must prove to succeed in an action for trespass to land. In an action, for trespass to land, a plaintiff must prove 3 things. They are:

- ① That the defendant directly entered his land, remained on the land or placed something on the land. In *BALOGUN V. ALAKIJA*, the defendant hired the plaintiff to collect rent for him. One night the defendant who was dissatisfied with the way and manner the plaintiff accounted for the rent went to the plaintiff's house. An altercation started between the plaintiff and the defendant. The plaintiff asked the defendant to leave his house. The defendant did not leave until about 15 minutes after. The plaintiff sued for trespass. The court held that there was trespass by remaining on the land.
- That the plaintiff has possession or right to immediate possession of the land.
- That the entry by the defendant was without lawful justification
- In the case of *ONANSANYA V. EMMANUEL* the plaintiff sued the defendant for trespass because:
 - The defendant's foundation entered the plaintiff's land by 10 feet;
 - The defendant had been throwing water and refuse into his land
 - That the defendant solid waste disposal was cracked and faeces escaped into his land.

The court held that only the first 2 acts constituted trespass to land.

12. SPECIFIC KINDS OF TRESPASS

The law recognizes several kinds of trespass: to land. They include:

a. Trespass Ab Initio: the original entry was lawful. But the defendant committed a kind of trespass that forces the court to declare him a trespasser from the original entry. This happens where a lawful possessor abuses his authority so that his entry becomes unlawful from the beginning. The principle of the law is that for a person to be a trespasser ab initio he must do that which is not consistent with the purpose for which he was put in the premises. For there to be trespass Ab Initio 3 conditions must be fulfilled:

- ✓• The entry must be based on a right conferred by law and not merely by the permission of the occupier.
- The wrongful act must be a misfeasance (a positive wrongful act) and not a nonfeasance (an omission to act).
- The subsequent wrongful act must be of such a nature as to make the defendant's presence totally unjustifiable.

b. Trespass Above and Below the Ground: Although an action cannot lie for actions that are far above the plaintiff's land, the general rule is that a plaintiff can sue for a trespass to a reasonable height above the ground. Thus in *KELSON V. IMPERIAL TOBACCO CO*, the court held that a defendant who put a sign post in his land with the top stretching above the plaintiff's house was trespass to land. The Court held that the defendant's superincumbent invasion of the plaintiff's airspace was trespass. Similarly, in *WOLLERTON LTD V. COSTAIN* the defendant's crane while in operation fell on the plaintiff's roof. It was held to be trespass to the plaintiff's land by interference with his air space. As regards trespass below the ground, in the case of COX V. GLUE it was held to be trespass for the defendant to dig a tunnel from his land into the underground of the plaintiff.

c. Continuing Trespass: if a person enters and remains upon another person's land without authority or places an object there he would be liable for the initial intrusion as well as the failure to remove the object. So long

as the object remains there, there is continuing trespass giving rise to actions de die in diem (from day to day) until the condition is abated by his removal of himself or the object. In HOLMES V. WILSON, highway authorities put a platform on the defendant's land to build a bridge on the highway. After judgement was entered the platform remained on it. It was held to be continuing trespass. In Lajide V. Oyeleran, the defendant entered the plaintiff's land and laid foundation on it. The plaintiff sued and judgment was given in his favour. The defendant neglected to remove the foundation and the plaintiff initiated another action. The defendant was held liable again for continuing trespass for failing to remove the foundation.

- d. Trespass by Relation: A person who is currently in possession may sue for trespass that occurred before he came into possession. If Bola Chicago is to come into possession on the 1st of June 2020. And Bonnyface trespasses into the land by 1st May 2020. Bola Chicago can sue for trespass.
- e. Trespass between Co-Owners: Where there is joint ownership of a property, one joint tenant cannot maintain an action for trespass against another joint tenant. The exception to this rule is where the defendant committed destructive waste of the common property or where the defendant unlawfully ousted the plaintiff from the property. In these circumstances an action for trespass would lie against the defendant.

13. REMEDIES AVAILABLE TO A VICTIM OF TRESPASS TO LAND

A victim of trespass to land can go to court and claim the following remedies:

- a. **Action for Recovery of Land**: He can bring an action against a person in illegal possession for possession, where he demonstrates that he has a good title and he has a right to immediate possession.
- b. **Action for Damages**: Like all other torts he can bring an action for damages. Because trespass to land is actionable per se he can be awarded damages even if he does not demonstrate that he suffered any harm.
- c. **An Injunction**: The plaintiff may also bring an action for an injunction to restrain the defendant from committing further trespass. However, this is not a

common remedy and it does not apply in every case. This is because the remedy of injunction is at the discretion of the court.

- d. Mesne Profit: This is the rent due from a tenant who overstayed his lease.
- e. Self – Help: The position of the law is that it is not ordinarily illegal for a title owner to use self-help to evict a trespasser. However, if it results in violence or damage to goods or life or to battery then the person using self-help may be liable in law. It is for this reason the law frowns at self-help. In *Eliochin Nigeria Ltd V. Mbadiwe, Anialogu JSC* Stated that: "the laws of civilized nations have always frowned at self –help. If for no other reason that they engender breach of peace. It is no doubt frustrating for a landlord to watch helplessly his property in the hands of an intransigent tenant who is paying too little for his holding or keeps the premises untidy, or is irregular in his payment of rents or is otherwise unsuitable for the property. The temptation is very strong for the landlord to simply walk into the property and retake immediate possession. But this is precisely what the law forbids."
- f. Distress Damage Feasant: a land owner may eject a trespasser and hold his goods in lieu of payment of any damage to the land. For this to apply there must be actual damage done to the land.
- g. Declaration of Title: The plaintiff can bring an action for declaration of title to land, where there are conflicting claims as to title. The essence is to declare as between the plaintiff and the defendant who has a better title.

14. DEFENCE TO TRESPASS TO LAND

- a. Licence/Consent: It is a defence that he is on the land with the consent and licence of the
- b. Abatement of Nuisance: It is a defence for the defendant to say in court that he entered the plaintiff's land to abate a nuisance. Where Bola Chicago entered the land of Bonnyface to shut a tap that was left on and is causing flood in his land it is not trespass to land.
- c. Entry to Recover Chattel: where he entered the land to recover chattel wrongly taken by the plaintiff no action for trespass would lie.
- d. Statutory Authority: Where a police officer with a search warrant or a court bailiff or any authority representative enters a person's land it is not trespass to land.